



Giving staff time off for jury service

Frequently asked questions

How long does jury service last?

Jury service usually lasts 2 weeks but may be longer. If a trial is likely to last longer than 2 weeks, jurors will be asked at court if this will cause problems for their job.

Do I have to pay my employee during jury service?

It's your choice whether to pay them or not during jury service.
You have 3 options:

- pay your employee their full earnings during jury service (you cannot claim this back from the court)
- not pay them anything – they can claim loss of earnings from the court of up to £64.95 a day for the first 10 days
- alternatively, you could let them claim loss of earnings from the court but give them a top up payment to make up any difference between the loss of earnings maximum rate and their full pay

If I pay my employee during jury service, can I claim this back from the court?

No, you cannot claim this back as an employer. Only a juror can claim loss of earnings due to jury service and only if their employer does not pay them during this time.

Will the court pay for someone to temporarily cover my employee's duties whilst they are on jury service?

No. The court does not pay compensation to employers. However, your insurance might provide for an employee's absence for jury service.

Can I ask my employee to change the dates of their jury service or to be excused?

Your employee has been summoned to be a juror and you must allow them time off to complete jury service. However, they can ask to change the dates (defer) for work reasons. They can only change the dates once and they must complete jury service within 12 months of the original date they were asked to serve.

You must not discriminate against your employee for going on jury service. If you dismiss them for serving, they could take you to an employment tribunal.

What counts as net daily earnings?

This is the amount the employee takes home after you've deducted income tax, National Insurance (NI) and all other deductions.

Should I still pay an employee's income tax, NI and pension during jury service?

Yes, if their gross pay, including any statutory pay (such as sick pay) is above the earnings threshold. It's unlikely that income tax, NI or pensions will be affected by jury service unless your employee serves on a very long trial.

Can my employee continue to work night shifts or weekends?

Jurors must be fit and alert to carry out jury service. They should not be made to work night shifts before they are due in court.

Does my employee have to come back to work early if their jury service is less than 10 working days?

The employee should return to work for either half days (up to 4 hours) or full days when they're not needed at court.

However, we accept this is not always practical for you. For example, if you've arranged temporary cover that you cannot cancel at short notice.

Can I find out how many days my employee actually served as a juror?

Yes – ask your employee to get a certificate of attendance from the jury manager at the court when they're discharged from jury service.

More information

www.gov.uk/jury-service

www.gov.uk/giving-staff-time-off-jury-service